



CHAPTER 41.

An Act to make temporary provision for the division of abnormally large constituencies together in certain cases with adjoining constituencies, and permanent provision for the redistribution of seats at parliamentary elections. [26th October 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) For the purpose of the continuous review of the distribution of seats at parliamentary elections, there shall be constituted four permanent Boundary Commissions, namely a Boundary Commission for England, a Boundary Commission for Scotland, a Boundary Commission for Wales and a Boundary Commission for Northern Ireland. Establishment of permanent Boundary Commissions.

(2) The Boundary Commissions shall be constituted—

- (a) in the case of the Commission for England, as soon as may be after the commencement of this Act ; and
- (b) in the case of the other Commissions, as soon as may be after the date on which regulations made in pursuance of subsection (3) of section twelve of the Parliamentary Electors (War-Time Registration) Act, 1943, (which provides for the publication of electors lists for every constituency) come into force. 6 & 7 Geo. 6. c. 48.

(3) The Boundary Commissions shall be constituted in accordance with the provisions of Part I of the First Schedule to this Act, their assistant Commissioners and other officers shall be appointed and their expenses shall be defrayed in accordance

with the provisions of Part II of that Schedule, and their procedure shall be regulated in accordance with Part III of that Schedule.

(4) For the purposes of this Act the administrative county of Monmouth shall be taken to be part of Wales and not part of England.

Immediate
division of
constituencies
having
electorates
exceeding
100,000.

2.—(1) The Boundary Commission for England shall forthwith take into consideration the constituencies described in the first and second columns of the Second Schedule to this Act (hereinafter referred to as "abnormally large constituencies"), being constituencies having electorates exceeding one hundred thousand as specified in the third column of that Schedule, and shall as soon as may be submit to the Secretary of State a report showing the constituencies (hereinafter referred to as "new constituencies") into which they recommend that the abnormally large constituencies should be divided, in order to give effect to the following provisions, that is to say:—

- (a) subject to the next following paragraph, each of the abnormally large constituencies shall be divided into such number of new constituencies as is specified in relation thereto in the fourth column of that Schedule (being the number obtained by dividing its electorate by fifty thousand, disregarding any fraction);
- (b) where two or more abnormally large constituencies form a continuous area, that area may be so divided that one or more of the new constituencies include parts of more than one abnormally large constituency;
- (c) where an area is divided in accordance with paragraph (b) of this subsection, the number of new constituencies into which it is divided shall be the total number of new constituencies that would have been created by dividing, in accordance with paragraph (a) of this subsection, each of the abnormally large constituencies comprised in the area.

(2) Where—

- (a) any part of a county borough or county district within the meaning of the Local Government Act, 1933, is included in an abnormally large constituency, and another part thereof is included in an adjoining constituency which is not an abnormally large constituency; and
- (b) the Boundary Commission are of opinion that it is desirable to include both parts of the county borough or county district in the same constituency;

they may, for all the purposes of the foregoing subsection, treat the abnormally large constituency as including the adjoining

constituency, and the number of new constituencies into which the abnormally large constituency (including the adjoining constituency) is to be divided as increased by one.

(3) Each of the new constituencies shall return a single member.

(4) The said report shall be laid by the Secretary of State before Parliament as soon as may be after its submission to him, together with the draft of an Order in Council for giving effect, whether with or without modifications, to the recommendations contained therein.

(5) For the purposes of this section the expression "electorate" in relation to a constituency means the number of electors appearing on the register of parliamentary electors for the constituency which came into force on the fifteenth day of November, nineteen hundred and thirty-nine.

3.—(1) Each Boundary Commission shall, as soon as may be after the date on which regulations made in pursuance of sub-section (3) of section twelve of the Parliamentary Electors (War-Time Registration) Act, 1943, come into force, take into consideration the representation in the House of Commons of that part of the United Kingdom with which they are concerned and submit to the Secretary of State a report with respect to the whole of that part of the United Kingdom showing the constituencies into which they recommend that it should be divided, and the number of members which they recommend should be returned by each of them other than the City of London, in order to give effect to the rules set out in the Third Schedule to this Act.

(2) In relation to a report by a Boundary Commission under this section, the enumeration date for the purpose of the Third Schedule to this Act shall be taken to be whichever is the later of the following dates, namely—

(a) the earliest date on which lists of persons who appear to registration officers to be qualified to be registered in the civilian residence and service registers are required to be published by the said regulations; or

(b) the earliest date on which lists of persons who appear to registration officers to be qualified to be registered in the business premises register are required to be published by the said regulations.

(3) The report of a Boundary Commission under this section shall be laid by the Secretary of State before Parliament as soon as may be after its submission to him.

4.—(1) After the submission of their report under the last foregoing section, each Boundary Commission shall keep under review the representation in the House of Commons of the part of the United Kingdom with which they are concerned, and

Initial report
of
Commissions
as to redistri-
bution.

Periodical
reports of
Commissions
as to redistri-
bution.

shall, in accordance with the next following subsection, submit to the Secretary of State reports with respect to the whole of that part of the United Kingdom, either—

- (a) showing the constituencies into which they recommend that it should be divided, and the number of members which they recommend should be returned by each of them, in order to give effect to the rules set out in the Third Schedule to this Act ; or
 - (b) stating that, in the opinion of the Commission, no alteration is required to be made in respect of that part of the United Kingdom in order to give effect to the said rules.
- (2) Reports under the last foregoing subsection shall be submitted by a Commission—
- (a) in the case of the first report, not less than three or more than seven years from the date of the passing of an Act giving effect (whether with or without modifications) to the recommendations contained in the reports submitted by the Commissions under the last foregoing section ; and
 - (b) in the case of the second or any subsequent report, not less than three or more than seven years from the date of the submission of their last report under subsection (1) of this section :

Provided that a report stating that no alteration is required to be made in respect of the part of the United Kingdom with which a Commission is concerned shall not be submitted less than six years from the date of the passing of the said Act, or the date of the submission of their last report under subsection (1) of this section, as the case may be.

(3) Any Boundary Commission may also from time to time submit to the Secretary of State reports with respect to the area comprised in any particular constituency or constituencies in the part of the United Kingdom with which they are concerned, showing the constituencies into which they recommend that that area should be divided, and the number of members which they recommend should be returned by each of them, in order to give effect to the rules set out in the said Third Schedule.

(4) Where a Commission intend to consider making a report under this section, they shall, by notice in writing, inform the Secretary of State accordingly, and a copy of the said notice shall be published—

- (a) in a case where it was given by the Boundary Commission for England or the Boundary Commission for Wales, in the London Gazette ; and

- (b) in a case where it was given by the Boundary Commission for Scotland, in the Edinburgh Gazette ; and
- (c) in a case where it was given by the Boundary Commission for Northern Ireland, in the Belfast Gazette ;

and the date on which any such notice is so published with respect to any report shall, for the purposes of the Third Schedule to this Act, be taken to be the enumeration date in relation to that report.

(5) As soon as may be after a Boundary Commission have submitted a report to the Secretary of State under this section, he shall lay the report before Parliament together, except in a case where the report states that no alteration is required to be made in respect of the part of the United Kingdom with which the Commission are concerned, with the draft of an Order in Council for giving effect, whether with or without modifications, to the recommendations contained in the report.

5.—(1) A report of a Boundary Commission under this Act showing the constituencies into which they recommend that any area should be divided shall state, as respects each constituency, the name by which they recommend that it should be known, and whether they recommend that it should be a parliamentary county or division of a parliamentary county or a parliamentary borough or division of a parliamentary borough.

General provisions as to reports and Orders in Council.

(2) The draft of any Order in Council laid before Parliament by the Secretary of State under this Act for giving effect, whether with or without modifications, to the recommendations contained in the report of a Boundary Commission may make provision for any matters which appear to him to be incidental thereto or consequential thereon.

(3) Where any such draft gives effect to any such recommendations with modifications, the Secretary of State shall lay before Parliament together with the draft a statement of the reasons for the modifications.

(4) If any such draft is approved by resolution of each House of Parliament, the Secretary of State shall submit it to His Majesty in Council.

(5) If a motion for the approval of any such draft is rejected by either House of Parliament or withdrawn by leave of the House, the Secretary of State may amend the draft and lay the amended draft before Parliament, and, if the draft as so amended is approved by resolution of each House of Parliament, the Secretary of State shall submit it to His Majesty in Council.

(6) Where the draft of an Order in Council is submitted to His Majesty in Council under this section, His Majesty in Council may make an Order in terms of the draft which shall come into

force on such date as may be specified therein and shall have effect notwithstanding anything in any enactment :

Provided that the coming into force of any such Order shall not affect any parliamentary election until a proclamation is issued by His Majesty summoning a new Parliament, or affect the constitution of the House of Commons until the dissolution of the Parliament then in being.

(7) The validity of any Order in Council purporting to be made under this Act and reciting that a draft thereof has been approved by resolution of each House of Parliament shall not be called in question in any legal proceedings whatsoever.

Exception
of university
constituen-
cies.

6. Nothing in this Act shall apply to university constituencies, and accordingly in this Act the expression "constituency" shall not include a university constituency, and, in considering for the purposes of this Act the representation in the House of Commons of any area, the representation of university constituencies shall be disregarded.

Interpretation.

7 & 8 Geo. 5.
c. 64.

7.—(1) In this Act the expressions "constituency" (subject to the provisions of the last foregoing section) and "university constituency" have the same meanings as in the Representation of the People Act, 1918.

(2) In the application of this section to Northern Ireland, the reference to the Representation of the People Act, 1918, shall be construed as a reference to that Act as it applies in relation to the election of members to serve in Parliament for constituencies in Northern Ireland.

Short title
and citation.

8. This Act may be cited as the House of Commons (Redistribution of Seats) Act, 1944, and shall be included among the Acts which may be cited as the Representation of the People Acts.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

CONSTITUTION, OFFICERS, EXPENSES AND PROCEDURE OF BOUNDARY COMMISSIONS.

PART I.

Constitution.

1. The Speaker of the House of Commons shall be the chairman of each of the four Commissions.
2. The Commission for England shall consist of the chairman, the Registrar General of Births, Deaths and Marriages in England, the Director General of Ordnance Survey and two other members of whom one shall be appointed by the Secretary of State and the other by the Minister of Health.
3. The Commission for Scotland shall consist of the chairman, the Registrar General of Births, Deaths and Marriages in Scotland, the Director General of Ordnance Survey and two other members appointed by the Secretary of State.
4. The Commission for Wales shall consist of the chairman, the Registrar General of Births, Deaths and Marriages in England, the Director General of Ordnance Survey and two other members of whom one shall be appointed by the Secretary of State and the other by the Minister of Health.
5. The Commission for Northern Ireland shall consist of the chairman, the Registrar General of Births, Deaths and Marriages for Northern Ireland, the Commissioner of Valuation for Northern Ireland and two other members appointed by the Secretary of State.
6. One of the members of each Commission, to be nominated by the chairman, shall be deputy chairman of the Commission.
7. A member of the House of Commons, or of either House of the Parliament of Northern Ireland, shall be disqualified for being appointed a member of any of the Commissions by the Secretary of State or Minister of Health, and a member of a Commission so appointed shall be disqualified for being a member of the Commission on his becoming a member of any such House.
8. A member of any Commission appointed by the Secretary of State or Minister of Health shall hold his appointment for such term and on such conditions as may be determined before his appointment by the Secretary of State or Minister of Health, as the case may be.

1ST SCH.
—cont.

PART II.

Officers and expenses.

1.—(1) The Secretary of State may, at the request of any Commission, appoint one or more assistant Commissioners to inquire into, and report to the Commission upon, such matters as the Commission think fit.

(2) Any such assistant Commissioner shall be appointed either for a certain term or for the purposes of a particular inquiry, and on such conditions as to remuneration and otherwise as may be determined before his appointment by the Secretary of State with the approval of the Treasury.

2. The Secretary of State shall appoint a secretary to each of the Commissions, and may appoint such other officers of any Commission as he may determine with the approval of the Treasury, and the term and conditions of any such appointment shall be such as may be so determined.

3. The expenses of each Commission, including the travelling and other expenses of the members thereof, and the remuneration and expenses of the assistant Commissioners, secretary and other officers, shall be defrayed out of moneys provided by Parliament.

PART III.

Procedure.

1. A Commission shall have power to act notwithstanding a vacancy among the members thereof, and at any meeting of a Commission two, or such greater number as the Commission may determine, shall be the quorum.

2. For the purpose of considering any matter of common concern, the Commissions, or any two or three of them, may hold joint meetings.

3. Where a Commission have provisionally determined to make recommendations affecting any constituency, they shall publish in at least one newspaper circulating in the constituency a notice stating—

(a) the effect of the proposed recommendations and (except in a case where they propose to recommend that no alteration be made in respect of the constituency) that a copy of the recommendations is open to inspection at a specified place within the constituency; and

(b) that representations with respect to the proposed recommendations may be made to the Commission within one month after the publication of the notice;

and the Commission shall take into consideration any representations duly made in accordance with any such notice.

4. A Commission may, if they think fit, cause a local inquiry to be held in respect of any constituency or constituencies.

5.—(1) Subsections (2) and (3) of section two hundred and ninety of the Local Government Act, 1933, (which relate to the attendance of witnesses at inquiries) shall apply in relation to any local inquiry which the Commission for England or the Commission for Wales may cause to be held in pursuance of this Act.

1ST SCH.
—cont.

(2) In relation to any local inquiry which the Commission for Scotland may cause to be held as aforesaid, the said subsections (2) and (3) shall apply in like manner as if that Act applied to Scotland, with the substitution however of references to an order for references to a summons.

(3) In relation to any local inquiry which the Commission for Northern Ireland may cause to be held as aforesaid, sections nineteen and twenty of the Poor Relief (Ireland) (No. 2) Act, 1847, shall apply. 10 & 11 Vict. c. 90.

6. Subject to the foregoing provisions of this Schedule, each of the Commissions shall have power to regulate their own procedure.

7. Every document purporting to be an instrument made or issued by a Commission and to be signed by the secretary or any person authorised to act in that behalf, shall be received in evidence and shall, until the contrary is proved, be deemed to be an instrument made or issued by the Commission.

SECOND SCHEDULE.

Section 2.

CONSTITUENCIES TO BE DIVIDED AND NUMBER OF NEW
CONSTITUENCIES.

Existing Constituency.		1939 Electorate.	No. of con- stituencies into which existing constituency is to be 'divided.
Parliamentary borough or county.	Division (if any).		
Birmingham ...	Moseley	109,059	2
Blackpool ...	—	106,892	2
Ilford ...	—	123,439	2
Bucks. ...	Wycombe	102,197	2
Chester ...	Altrincham	119,290	2
Essex ...	Epping	107,162	2
	Romford	207,101	4
	South Eastern	108,383	2
Hertford ...	St. Albans	102,990	2
Kent ...	Chislehurst	114,992	2
	Dartford	134,935	2
Middlesex ...	Harrow	168,594	3
	Hendon	208,609	4
	Twickenham	108,216	2
	Uxbridge	140,299	2
Surrey ...	Epsom	132,818	2
	Mitcham	103,162	2
West Sussex ...	Horsham and Worthing	100,834	2
Warwick ...	Nuneaton	112,503	2
	Tamworth	118,131	2

Section 3.

THIRD SCHEDULE.

RULES FOR DISTRIBUTION OF SEATS.

1. The number of constituencies in the several parts of the United Kingdom set out in the first column of the following table shall be as stated respectively in the second column of that table—

<i>Part of the United Kingdom</i>	<i>No. of Constituencies</i>
Great Britain ...	Not substantially greater or less than 591.
Scotland ...	Not less than 71
Wales ...	Not less than 35
Northern Ireland ...	12

2.—(1) A two-member constituency within the meaning of the next following rule which is not divided or required to return a single member as therein provided shall, subject to any adjustment of its boundaries made in accordance with that rule, continue to return two members.

(2) Every other constituency shall return a single member.

3.—(1) Any two-member constituency, the electorate whereof is less than approximately thirty-seven twentieths of the electoral quota or more than approximately two and a half times that quota, shall be divided into or among two or more other constituencies :

Provided that, where the electorate of the constituency is less than approximately one and a quarter times the electoral quota, the constituency may, instead of being divided as aforesaid, be required to return a single member.

(2) Any other two-member constituency shall be divided as aforesaid unless the Boundary Commission concerned, after causing a local inquiry to be held, are satisfied, having regard to any particular circumstances affecting the constituency, that it is undesirable so to divide it.

(3) Where the boundaries of a borough as last defined for the purpose of ascertaining the boundaries of a two-member constituency—

(a) do not include an area which is included within the boundaries of the borough as defined for local government purposes on the enumeration date ; or

(b) include an area which is not included within the boundaries of the borough as so defined for local government purposes ;

then—

(i) in reckoning the electorate of the constituency for the purpose of paragraph (1) of this rule, that area shall be included in or excluded from the constituency, as the case may be ; and

(ii) if it is determined under paragraph (2) of this rule that the constituency shall not be divided as aforesaid, the boundaries of the borough shall be redefined, for the purpose of ascertaining the boundaries of the constituency, so as to include or exclude that area, as the case may be.

(4) In the last foregoing paragraph, for references to a borough there shall be substituted, in its application to Scotland, references to a county of a city and, in its application to Northern Ireland, references to a county.

(5) In this rule the expression "two-member constituency" means a constituency returning two members on the enumeration date.

4. So far as is practicable having regard to rule 1 of these rules, the electorate of any constituency returning a single member shall not be greater or less than the electoral quota by more than approximately one quarter of the electoral quota.

5.—(1) So far as is practicable having regard to the foregoing rules—

(a) in England and Wales,—

(i) no county or any part thereof shall be included in a constituency which includes the whole or part of any other county or the whole or part of a county borough or metropolitan borough;

(ii) no county borough or any part thereof shall be included in a constituency which includes the whole or part of any other county borough or the whole or part of a metropolitan borough;

(iii) no metropolitan borough or any part thereof shall be included in a constituency which includes the whole or part of any other metropolitan borough;

(iv) no county district shall be included partly in one constituency and partly in another;

(b) in Scotland,—

(i) no county or burgh shall be included partly in one parliamentary county and partly in another, or partly in a parliamentary county and partly in a parliamentary borough;

(ii) no burgh other than a county of a city shall be included partly in one constituency and partly in another;

(c) in Northern Ireland, no county district shall be included partly in one constituency and partly in another.

(2) In paragraph (1) of this rule the following expressions have the following meanings, that is to say:—

"county" means, in sub-paragraph (a), an administrative county other than the county of London, and, in sub-paragraph (b), a county exclusive of any burgh situate therein;

"county borough" has the same meaning as in the Local Government Act, 1933;

"county district" has, in sub-paragraph (a), the same meaning as in the Local Government Act, 1933, and, in sub-paragraph (c), the same meaning as in the Local Government (Ireland) Act, 1898.

61 & 62 Vict.
c. 37.

6. A Boundary Commission may depart from the strict application of the last two foregoing rules if special geographical considerations, including in particular the size, shape and accessibility of a constituency, appear to them to render a departure desirable.

3RD SCH.
—cont.

7. Nothing in rules 2 to 6 of these rules shall apply to the City of London, but that City as constituted at the commencement of this Act shall continue to be a separate constituency, and shall return either two members or a single member as may be provided by the Act giving effect (whether with or without modifications) to the recommendations contained in the reports submitted by the Boundary Commissions under section three of this Act.

8.—(1) For the purpose of these rules—

(a) the expression “electoral quota” means—

(i) in the application of these rules to a constituency in Great Britain, a number obtained by dividing the electorate for Great Britain by the number of constituencies in Great Britain existing on the enumeration date, or, in applying these rules for the purpose of section three of this Act, by the number of such constituencies existing at the commencement of this Act, namely five hundred and ninety-one; and

(ii) in the application of these rules to a constituency in Northern Ireland, a number obtained by dividing the electorate for Northern Ireland by the number of constituencies in Northern Ireland existing on the enumeration date;

(b) the expression “electorate”, in relation to any constituency or any part thereof, means—

(i) in a case where the enumeration date falls before the expiration of the Parliamentary Electors (War-Time Registration) Act, 1943, the number of persons whose names appear in the lists of persons qualified to be registered in the civilian residence, business premises and service registers for the constituency, or that part thereof, published on or last before that date in pursuance of regulations made under subsection (3) of section twelve of that Act; and

(ii) in a case where the enumeration date falls after the expiration of the said Act, the number of persons whose names appear on the parliamentary register of electors for the constituency, or that part thereof, in force on that date under the Representation of the People Act, 1918; and, in relation to Great Britain or Northern Ireland, means the aggregate electorates as hereinbefore defined of all the constituencies therein.

(2) In reckoning for the purpose of these rules the number of constituencies in any part of the United Kingdom, a constituency returning two members shall be reckoned as two constituencies.

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